

M/S Shah Battery v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 May 2022 and 5 August 2025 · WRIT - C No. 13177 of 2022 · Counter directed; writ listed by consent; 4.37 plea undecided

HEADNOTE

In a writ by a consumer whose supply was temporarily disconnected on 23.01.2017, the Allahabad High Court recorded the plea that Para 4.37 of the U.P. Electricity Supply Code, 2005 deemed the disconnection permanent after six months and barred subsequent billing, directed the licensee to file a counter specifically on that submission, and later listed the petition by consent. The Code was not construed and the demand was not quashed.

FACTUAL SUMMARY

M/S Shah Battery, whose electricity connection was temporarily disconnected on 23 January 2017, approached the Allahabad High Court alleging that the distribution licensee continued to raise bills long after the six-month period in clause 4.37 of the U.P. Electricity Supply Code, 2005, which the petitioner says converts temporary disconnection into a deemed permanent disconnection and forbids further demand. The 7 May 2022 Division Bench called for a counter confined to that plea. On 5 August 2025 another Division Bench, by consent, listed the writ for 12 August 2025.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interlocutory listing and counter-affidavit

HOLDING

The Court recorded the petitioner's plea that after six months from the 23.01.2017 temporary disconnection, Para 4.37 of the U.P. Electricity Supply Code, 2005 deemed the supply permanently disconnected and barred further billing, granted the licensee a week to file a counter affidavit specifically answering that plea, listed the writ as a fresh case, and later by consent fixed it for 12.08.2025 in the top ten. Clause 4.37 was not construed. ¶ 1-2

PRINCIPLE TAGS

procedural-listing-no-construction The writ was admitted to a counter specifically on the clause 4.37 deemed-permanent-disconnection billing plea and later listed by consent; the Code was not construed. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PARA 4.37 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 DEEMS THE 23.01.2017 TEMPORARY DISCONNECTION TO BE PERMANENT AFTER SIX MONTHS AND BARS SUBSEQUENT BILLING.

Recorded as the petitioner's submission; counter directed; no merits finding. ¶ 1-2